

proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest.**" See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the successor in interest and that "[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." *Id.*

The Supporting Declaration filed by the successor-in-interest here complies with those requirements and the Petition is unopposed.

Disposition

The Court finds and orders as follows:

1. The Petition is GRANTED.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-03686
CASE NAME: SAUNDRA MARTINEZ VS. TAPPAN ZEE, ESQ.
HEARING IN RE: PETITION FILED 12/28/25
FILED BY: MARTINEZ, SAUNDRA N
TENTATIVE RULING:

Plaintiff Saundra N. Martinez ("Plaintiff") filed a petition on December 18, 2025 (the "Petition"). The Petition was set for hearing on May 4, 2026.

Background

The Petition herein seeks "an immediate order to quash and/or dismiss the current writ of execution issued by the Elk Grove Sheriff's Department Levy officer (Jim Cooper Sheriff)."

No proof of service is on file herein.

Analysis

It appears to the Court that this matter may involve proceedings in relation to another case in this Court or out-of-county litigation pending before another court. The Court is inclined to issue an order to show cause regarding dismissal of this case.

Disposition

The Court finds and orders as follows:

1. Plaintiff to APPEAR to address the pending Petition.

13. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO TO MEHRZAD AZARI**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

14. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: REOPEN DISCOVERY AND/OR IN THE ALTERNATIVE, ALLOW PLAINTIFF TO SERVE TARDY EXPERT WITNESS DISCLOSURE**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

15. 9:00 AM CASE NUMBER: MSC21-01086

CASE NAME: HERNANDEZ VS. AMERICAN AUTOMOBILE

***MOTION/PETITION TO COMPEL ARBITRATION RE: AMERICAN AUTOMOBILE ASSOCIATION OF NORTHERN CALIFORNIA, NEVADA & UTAH**

FILED BY: HERNANDEZ, ELIZABETH

TENTATIVE RULING:

The unopposed petition to confirm arbitration award filed December 17, 2025 is GRANTED. Moving party to submit form of order and judgment.

16. 9:00 AM CASE NUMBER: N25-2269

CASE NAME: PETITION OF: ELAINE LAVAN

***HEARING ON MOTION IN RE: FOR ORDER REQUIRING RESPONDANT TO PREPARE AND PROVIDE ADMINISTRATIVE RECORD W/O COST TO PETITIONER**

FILED BY: LAVAN, ELAINE

TENTATIVE RULING:

Petitioner Elaine La Van's motion to require Respondent California State Approving Agency for Veterans Education to prepare the record is **DENIED**.

Petitioner requests that respondent California State Approving Agency for Veterans Education (CSAAVE) be ordered to prepare the administrative record in this case and provide a certified copy of the record to Petitioner at no cost, pursuant to Code of Civil Procedure section 1094.5.